IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI

COURT-VI

Item No. 614
CAA-69/PB/2021

IN THE MATTER OF:
M/s. Gallant Ispat Ltd.
and M/s. Gallant Metal Ltd. **...APPLICANT**

Section
Under Section 230-232

Order delivered on 26.04.2022
(Virtual Hearing)

Coram:
DR. P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)
SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

For the Petitioner/Applicant	:Mr. Abhishek Kumar Rao, Mr. Shailesh Suman Advocates along with Raveena Paniker and Mr. Abhishek Nahta, CA.
For the RD	:Ms. Shankari Mishra, Advocate.
For the OL	:Ms. Hemlata Rawat, Advocate.
For the Income Tax Department	:Adv. Abhishek Maratha, Sr. Standing Counsel and Adv. Pratyaksh Gupta, Jr. Standing Counsel.

ORDER

Heard the submissions made by the Ld. Counsel for the Petitioner. It transpires from the communication dated 07.09.2021 by the Assistant Commissioner Income Tax Central Circle, Varanasi to their standing Counsel Mr. Abhishek Maratha that they have no objection on the amalgamation scheme of the above companies **if the Transferee Company indemnifies the liabilities mentioned in the letter and the pending proceedings**. Therefore, Ld. Counsel for the Petitioner is directed to take steps to get the Transferee Company's indemnity-cum-undertaking with regard to the liabilities mentioned in the letter dated 07.09.2021 and pending proceedings. At the request of the

(Annu)

Ld. Counsel, week days' time is granted for furnishing the same. Post the matter after a week. List the matter on **09.05.2022.**

—Sd—

(Rahul Bhatnagar)
Member (T)

—Sd—

(P.S.N. Prasad)
Member (J)

(Annu)